

**Superior Court of the State of California
County of Orange**

Hon. ANDRE MANSSOURIAN

TENTATIVE RULINGS FOR DEPARTMENT C12 – (657) 622-5212

Court will make every effort to post tentative rulings at approximately 3:00pm the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all** parties submit on the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to login, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

Date: April 18, 2025

#	Case Name	Tentative
1.	Sheikh vs. Walmart, Inc. 25-01457208	Motion to Be Relieved as Counsel of Record Attorney Salar Hendizadeh, Esq., and Downtown LA Law Group's motion to be relieved as counsel of record for Plaintiff Zain-ul-Abideen Sheikh is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. Moving counsel shall, within 5 days, provide the court with an updated proposed order that lists the newly continued CMC date and time of 7/17/2025 at 9:30 a.m. to be listed in ¶ 7.a. of the order. Moving counsel shall give notice.

2.	Green Flag Compliance vs. KC2 Group 23-01315404	Motion to Compel Production OFF CALENDAR- DISMISSED 3/27/25
3.	Estrada vs. General Motors, LLC 24-01424735	Motion to Compel Production OFF CALENDAR – Motion was continued to 7-11-25
4.	Protack vs. Montejo 24-01434462	Motion to Compel Plaintiff Michael D. Protack’s motion to compel discovery responses is CONTINUED to June 13, 2025, at 9:30 a.m. in Department C12. As Defendants have filed a notice of motion under Code of Civil Procedure (“CCP”) section 425.16, all discovery proceedings (including discovery motions) are automatically stayed until the notice of entry of the order ruling on that motion. (CCP § 425.16, subd. (g); see also <i>Britts v. Super. Ct.</i> (2006) 145 Cal.App.4th 1112, 1129.) The court has read and considered the document Plaintiff filed on 4/10/2025 at ROA #40. The court construes this document as a reply brief in support of Plaintiff’s motion to compel discovery responses at ROA #20. To the extent Plaintiff wishes to seek an order from the court permitting specified discovery to be conducted for good cause shown under CCP section 425.16(g), Plaintiff must file a properly noticed motion as required by that section. Litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow correct rules of procedure. (<i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1247-1248.) Plaintiff is encouraged to review all applicable portions of the Code of Civil Procedure, Evidence Code, California Rules of Court, and Orange County Superior Court Local Rules and procedures, including but not limited to Code of Civil Procedure section 1010, California Rules of Court rule 3.1112 et seq., and this Court’s Unlimited Civil Courtroom Schedule & Requirements. Defendants shall give notice.